

實務守則

處所獲批讓狗隻處於食物業處所的准許：店主／員工應如何即場處理事故

本指引適用於獲食物環境衛生署（食環署）批准容許狗隻進入的食肆，供持牌人、店主、經理及前線員工於沒有政府人員在場時，如何先行／即場處理狗吠、撲人、失控、衛生問題及狗主不合作等事故之用。

基本原則

持牌人須確保處所運作符合食環署牌照條件、食物安全要求及良好作業安排；員工亦應知悉，若發現違規或危險行為，應如何即時應對及向其上級匯報。

如有即時危險、有人受傷、狗隻追逐或咬人事故，應先保障現場人士安全，並立即報警處理；如狗隻仍未受控，警方會即時轉交漁農自然護理署到現場跟進；如狗隻已受控，漁農自然護理署在收到警方轉介後，聯絡狗主跟進。如狗主或店方涉及違反食物業規例或牌照條件，食環署接報後會作出跟進(市民可致電**1823**提出建議、詢問及投訴)。

即場處理步驟

第一步	判斷風險
	先迅速判斷事件屬於以下那種類別：一般狗吠、持續滋擾、撲人／追逐、咬人、排泄／污染、或狗主拒絕配合。
	如見到狗隻已有衝前、露齒、撲向他人、追逐、打鬥或咬傷跡象，應視為高風險情況，不應只作一般勸喻。
第二步	即時口頭指示
	店主或員工應立即以清晰而簡短方式要求狗主控制狗隻，例如要求縮短狗帶、將狗隻帶回座位旁、停止接近其他客人，或立即把狗隻帶離處所範圍。 如餐廳守則已列明相關要求，應直接按守則執行，避免與狗主爭論法理細節。
第三步	分隔人群及保護現場人士
	如情況有升級風險／跡象，應先安排受影響客人離開相關區域，避免客人圍觀、挑釁或觸碰狗隻，並暫停安排客人坐近涉事位置。 如有食物、器皿或熱飲接近涉事位置，應盡快移走，以減低人身及食物安全風險。
第四步	按情況採取措施
	如屬一般滋擾而狗主採取合作態度，可要求即時改善，例如安撫狗隻、減少刺激、帶狗到較少人的位置，或短暫帶同狗隻離開處所，待冷靜後再決定是否重返。 如狗隻持續失控、撲人、追逐、造成恐慌或有機會影響其他客人安全，持牌人／店主／經理／員工應要求狗主帶同狗隻立即離場；如拒絕合作或有即時危險，應立即報警處理。
第五步	記錄及上報
	員工應記錄涉事時間、桌號／位置、狗隻特徵、相關人士資料、店鋪採取的措施、是否有人受傷、是否有閉路電視片段／錄影紀錄，並向店長或持牌人匯報。 如事件涉及咬人(根據法例第 421 章<<狂犬病條例>>狗隻蓄養人須將該事實通知最近的警署，不得延誤)、格鬥狗隻或已知危險狗隻、狗隻嚴重失控、或涉嫌違反食環署牌照條件，必須向警方、漁護署及食環署作後續通報。

持牌人可做及應做的事項

持牌人可制定及執行處所守則，包括要求狗隻必須由成年人牽引、限制狗隻進入範圍、拒絕不受控制的狗隻進入，以及要求違規／不配合的狗主帶同狗隻離場。

持牌人應培訓員工、張貼標示、確保現場衛生狀況妥當、設有處理突發事故的程序，並在有需要時作出即時干預，而不應採取放任態度讓情況惡化。

當處理不足時

若店方明知狗隻持續失控、撲人、追逐、咬人、排泄或違反處所守則，惟沒有作出勸止、要求狗主配合、要求狗主帶同狗隻離場，甚至發現有即時危險時卻沒有上報相關政府部門，會可能被視為管理不足，不符合良好作業要求，或已違反牌照或准許條件的風險。

正如上述，若情況已構成即時危險，但店方仍採取愛理不理態度，除了涉嫌違反牌照或准許條件外，亦可能增加民事責任及在場人士受傷的風險。

為保障大眾安全與店內秩序，請各位寵物飼主務必配合立即縮短狗帶並控制狗隻；
如未能即時控制，本店將會請你帶同狗隻離開，亦可能向相關政府部門舉報此事件。



Code of Practice

Food Premises Permitted to Admit Dogs: On-site Management by Restaurant Owners/Staff

This Guideline is applicable to local food premises permitted by the Food and Environmental Hygiene Department (FEHD) to admit dogs, and is for reference of licensees, restaurant owners, managers, and frontline staff in handling situations such as dogs’ barking, lunging at people, loss of control, hygiene issues, and uncooperative dog owners in the absence of government officers.

Basic Principles

Licensees must ensure that their premises are operated in accordance with the licensing conditions of the FEHD, the relevant food safety requirements and the Guidelines on Good Practices and Behaviour. If any non-compliance or dangerous behaviour is observed, staff should know how to deal with it immediately and report it to their supervisors.

In the event of any imminent danger, injuries, dogs’ chasing or biting people, ensure the safety of everyone on the premises first and call the Police immediately. If the dog remains uncontrolled, the Police will immediately refer the case to the Agriculture, Fisheries and Conservation Department (AFCD) for on-site follow-up. If the dog is already under control, AFCD will contact the dog owner for follow-up upon receiving the referral from the Police. Should the dog owner or the restaurant operator be found to have violated food business regulations or licensing conditions, the FEHD will take follow-up action upon receipt of the report. (Members of the public may call 1823 to make suggestions, enquiries, or complaints.)

Steps for On-Site Handling of an Incident

Step 1	Assessing risks
	First, promptly determine which of the following categories the incident falls into: normal barking, persistent nuisance, lunging at people/chasing, biting people, defecation/soiling, or dog owners’ refusal to cooperate.
	If a dog shows signs of rushing forward, baring teeth, lunging at people, chasing, fighting or biting, it should be regarded as a high-risk situation and should not be handled by way of mere general advice.
Step 2	Issue verbal instructions immediately
	The restaurant owner or staff should immediately require, in a clear and concise manner, the dog owner to control the dog by, for examples, shortening the dog leashes, bringing the dog back to his seat, stopping the dog from approaching other customers or removing the dog from the indoor area immediately.
	If the relevant requirements are already stated in the house rules, enforce them directly, and avoid getting into arguments with the dog owners over legal details.
Step 3	Separate the crowd and ensure the safety of the scene
	If the situation is escalating, arrange for the affected customers to leave the scene first, prevent other customers from gathering around, provoking, or touching the dog, and suspend seating new customers near the incident location.
	Any food, utensils or hot drinks near the incident location should be removed as soon as possible to reduce risks to people and food safety.
Step 4	Take measures as appropriate
	For a general disturbance where the dog owner is cooperative, request the owner to make prompt improvements, for examples, to calm the dog, reduce stimuli, take the dog to a location with fewer people, or temporarily remove the dog from the premises and decide whether to return after calming it down.
	If a dog is persistently out of control, or if it lunges at people, chases around, creates a panic or poses a safety risk to other customers, the licensee should ask the dog owner to immediately leave the premises with the dog. In the case of non-cooperation or imminent danger, call the Police immediately.
Step 5	Record and report
	Record and report to the shop manager or the licensee the time of the incident, the table number/location, distinguishing features of the dog involved, details of the individuals involved, measures taken by staff, whether anyone was injured, and whether CCTV footage is available.
	If the incident involves a bite (Under the Rabies Ordinance (Cap. 421), its keeper must immediately report the incident to the nearest police station without delay), fighting dog or a known dangerous dog, severe loss of control, or a possible breach of the FEHD’s licensing conditions, consideration should be given to making a follow-up report to the Police, the AFCD or the FEHD.

In the Event of Inadequate Management

If a restaurant operator is aware that a dog is persistently out of control, lunging at people, chasing, biting, defecating, or violating the house rules but fails to intervene, request the owner’s cooperation, consider asking the owner to leave, or report the case to the concerned government department or the restaurant management when necessary, this may be regarded as inadequate management that fails to meet the requirements on good practice. It may also pose risks regarding the conditions of the license or permission.

If a situation poses an immediate danger but the restaurant operator still adopts an indifferent attitude, this may not only pose licensing risks but also increase the risks of civil liability and on-site injuries.

To ensure public safety and maintain order in the restaurant, all pet owners must cooperate by shortening promptly the leashes of their dogs and keeping their dogs under control. If you are unable to control your dog, please remove your dog from the restaurant; otherwise, we will report the incident to the relevant government departments.

